

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANT,

v.

APS EAST COAST, INC.,

RESPONDENT.

COMPLAINANT'S RESPONSE TO RESPONDENT'S
PROPOSED FINDINGS OF FACT

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Complainants Ports America Chesapeake, LLC (“PAC”) and Marine Terminal Corporation – East (“MTCE”) (together “Ports America”), through their counsel, hereby submit the following responses to Respondent APS East Coast, Inc.’s (“AMPORTS”) Proposed Findings of Fact (“RPFF”):

ENTITIES

1. Ports America operates at no less than nine terminals in the Port of Baltimore including (1) Seagirt, (2) Dundalk, (3) Atlantic, (4) Chesapeake, (5) Fairfield, (6) North Locust Point, (7) TradePoint Atlantic, (8) Intermodal Container Transfer Facility, and (9) South Locust Point
 - a. RX_01
 - b. RX_02-08
 - c. Supplemental Rog No. 7, pg 11, 12, 15;
 - d. <https://www.portsamerica.com/our-locations/baltimore-md>
 - e. CX_00926-927
 - f. CX_01070-1071
 - g. RX_21, Request No. 12
 - h. RX_23, Request No. 21
 - i. RX_23-24, Request No. 22
 - j. RX_32, Request No. 12
 - k. RX_34, Request No. 21
 - l. RX_34-35, Request No. 22

RESPONSE: Denied as stated. RPFF 1 is vague and ambiguous as the terms “operates,” “Ports America,” and “Port of Baltimore” are not defined. Admitted that Ports America currently perform or previously performed roll-on/roll-off (“ro/ro”) stevedoring at the

following terminals within the Baltimore region: 1) Atlantic, 2) Chesapeake, 3) Dundalk, 4) Fairfield, 5) South Locust Point, and 6) Tradepoint. RX_21, Complainant's Request for Admission Response No. 12; RX_32, Complainant's Request for Admission Response No. 12.

2. Ports America operates exclusively at Seagirt terminal as the sole stevedore.

- a. RX_49, Complainants' Supplemental Response: "Complainant PAC is the lessee and marine terminal operator ("MTO") of the Seagirt Marine Terminal in the Port of Baltimore and provider of associated services at the Seagirt Marine Terminal, including the sole provider of container stevedoring services at the Seagirt Marine Terminal."
- b. RX_51, Complainants' Supplemental Response: "Complainant PAC is currently the exclusive provider of the container stevedoring services performed in connection with operating as the marine terminal operator at the Seagirt Marine Terminal pursuant to the Seagirt lease."
- c. CX_00927-928
- d. CX_01072-1073

RESPONSE: Denied as stated. RPFF 2 is vague and ambiguous as the terms "operates" and "Ports America" are not defined. Admitted that PAC is currently the exclusive provider of container stevedoring services performed in connection with operating as the marine terminal operator at the Seagirt Marine Terminal pursuant to the Seagirt lease. RX_49, Complainant's Supplemental Interrogatory Response No. 8; RX_51, Complainant's Supplemental Interrogatory Response No. 19. The Seagirt lease was entered into in conjunction with a public-private partnership for the long-term lease, substantial redevelopment, and infrastructure investments involving [REDACTED] capital pledged by private investors for PAC needed to fund the necessary improvements at Seagirt. RX_49,

Complainant's Supplemental Interrogatory Response No. 8. Among other things, the Seagirt lease contains exclusivity provisions with respect to Seagirt Marine Terminal services that provide PAC with the ability to generate a revenue stream sufficient to be able to pay its [REDACTED] debt obligation to the State through fees for its services at Seagirt, and which are a material component of the Seagirt Marine Terminal development and PAC's operation of the Seagirt Marine Terminal. *Id.*

3. Ports America stevedores a variety of cargo including container, breakbulk, auto ro/ro, and bulk cargo.
 - a. RX_02-08
 - b. CX_00927
 - c. CX_0169-1070
 - d. <https://www.portsamerica.com/our-locations/baltimore-md>

RESPONSE: Admitted.

4. Ports America performs auto ro/ro stevedoring service at no less than 6 terminals in the Port of Baltimore: (1) Dundalk, (2) Fairfield, (3) South Locust Point, (4) Atlantic, (5) Chesapeake, and (6) Tradepoint Atlantic.
 - a. <https://www.portsamerica.com/our-locations/baltimore-md>
 - b. CX_00926-927
 - c. RX_21, Request No. 12
 - d. RX_32, Request No. 12

RESPONSE: Denied as stated. RPFF 4 is vague and ambiguous as the term "Ports America" and "Port of Baltimore" are not defined. Admitted that PAC currently performs ro/ro stevedoring at Dundalk, Fairfield, Atlantic, Chesapeake, and South Locust Point. RX_47-48,

Complainant's Supplemental Interrogatory Response No. 7. Denied to the extent that PAC does not currently perform ro/ro stevedoring at Tradepoint Atlantic. RX_47-48, Complainant's Supplemental Interrogatory Response No. 7; CX_00926, Beall Dep. Tr. 32:5-10, CX_01001, Beall Dep. Tr. 107:5-16. Admitted to the extent that MTCE currently performs ro/ro stevedoring at Dundalk, Fairfield, Chesapeake, and Atlantic. RX_47-48, Complainant's Supplemental Interrogatory Response No. 7; CX_00926, Beall Dep. Tr. 32:5-10. Denied to the extent MTCE does not currently perform ro/ro stevedoring at Fairfield, South Locust Point, and Tradepoint Atlantic. RX_47-48, Complainant's Supplemental Interrogatory Response No. 7, CX_01001, Beall Dep. Tr. 107:5-16.

5. PAC, MTCE, and Ports America Shared Services, Inc. are owned by Ports America Group, Inc.

a. CX_00923-925

RESPONSE: Denied as stated. The testimony cited does not support RPFF 5. The testimony is from a MTCE employee in his individual capacity and references the "Ports America Group umbrella" but does not discuss "Ports America Group, Inc." ownership of the above entities. CX_00923-25, Beall Dep. Tr. 29:8-31:6. Admit that PAC, MTCE, and Ports America Shared Services, Inc. are separate legal entities. RX_32, Complainant's Request for Admission Response No. 11; CX_00923, Beall Dep. Tr. 29:8-16. PAC, MTCE, and Ports America Shared Services, Inc. are all indirect, wholly owned subsidiaries of Ports America Group, Inc., but each are separate corporate entities. RX_32, Complainant's Request for Admission Response No. 11.

6. PAC and MTCE share many back-office services which includes financial, legal, and administrative support (including billing, payroll, and email systems), alongside insurance.

- a. CX_01068-1069
- b. CX_00918-921

RESPONSE: Denied as stated. Admit that PAC and MTCE each receive support services from Ports America Shared Services, Inc. and such support may include financial, legal, and administrative support. CX_00920-21, Beall Dep. Tr. 26:18-27:20. Denied as the cited testimony does not support the proposed fact as it relates to insurance: “Q: Do you know if that would include insurance? A: Yes, I *suspect* it does include insurance support.” CX_1068-69, Schmidt Dep. Tr. 29:22-30 (emphasis added).

7. PAC and MTCE’s shared back-office services are provided by Ports America Shared Services, Inc.

- a. CX_01068

RESPONSE: Denied as stated. Admit that PAC and MTCE each receive “back office support” from Ports America Shared Services, Inc. CX_01068, Schmidt Dep. Tr. 29:12-21. Denied that all the shared back-office services are provided by Ports America Shared Services, Inc. CX_01088-90, Schmidt Dep. Tr. 49:14-51:21.

8. PAC and MTCE share superintendents and directors.

- a. CX_01069
- b. CX_00915-916
- c. CX_00925

RESPONSE: Denied. RPFF 8 is vague and ambiguous and does not define the terms “director” or “superintendent.” Further, the RPFF mischaracterizes the testimony cited. MTCE and PAC are separate legal entities with separate boards of directors. CX_01069, Schmidt Dep. Tr. 30:4-10; RX_32, Complainant’s Request for Admission Response No. 11.

The cited testimony does not support the assertion that PAC and MTCE share superintendents and directors and only provides that there “may be” potential superintendent cross utilization between PAC and MTCE “*at time[s]*.” CX_01069, Schmidt Dep. Tr. 30:6-7 (emphasis added).

Mr. Beall’s individual testimony relating to his specific role establishes he was previously employed by MTCE but has changed roles to director of operations for PAC. CX_00914-15, Beall Dep. Tr. 20:18-21:21. His testimony establishes that in his unique position he is still involved with MTCE operations – the testimony does not support the assertion in RPFF 8 that MTCE and PAC “share directors.” CX_00915-16, Beall Dep. Tr. 21:22-22:19.

9. PAC and MTCE share equipment.

a. CX_01069

RESPONSE: Denied as stated. RPFF 9 is vague and does not define “equipment.”

10. PAC and MTCE do not compete against one another for business in Baltimore.

a. CX_01072

b. CX_00930

RESPONSE: Admitted.

11. The Atlantic and Chesapeake terminals in the Port of Baltimore are privately owned and operated by Respondent.

a. CPFF No. 15

b. Complainants’ Brief at page 5; Docket 23-04, Doc. 32

c. CX_00102

d. CX_00846

- e. CX_00869-870
- f. CX_00616
- g. CX_00454
- h. CX_00467-468
- i. CX_00628
- j. CX_01285-1290
- k. RX_21-22, Request No. 13 & 14
- l. RX_32-33, Request No. 13 & 14

RESPONSE: The evidence cited does not support that actual ownership of the terminals, but Admitted that the AMPORTS holds itself out as the owner and is the Maritime Terminal Operator.

PREFERRED STEVEDORE PROGRAM

12. In January 2022, APS began discussing additional methods to increase its profitability and considered a number of alternatives, including the use of a preferred stevedoring program at its privately owned terminals, following the same model used by other terminals, including those operated by PAC

- a. CPFF Nos. 27, 28
- b. CX_01072-1073

RESPONSE: Denied as stated. The evidence cited does not support this RPFF. Admitted that in fall of 2021 Respondent began discussing methods to increase its profitability, including the possibility of an “exclusive stevedoring arrangement.” CPFF 27, 28, 30.

Denied that a “model” exists for exclusive stevedoring. The evidence cited does not support this proposed fact.

Denied to the extent the testimony cited is mischaracterized and does not support the suggestion that Respondent's preferred stevedoring program is the "same" as the exclusive stevedoring arrangement at Seagirt Terminal. The testimony cited states PAC has a contract with the Maryland Port Administration to operate the Seagirt Marine Terminal, under a long-term concession agreement, where it provides exclusive container stevedoring services and no access fees are imposed on any other parties. CX_01072-73, Schmidt Dep. Tr. 33:9-34:9.

13. APS sought to implement an exclusive or preferred stevedoring provider system at its privately owned and operated facilities, the Atlantic and Chesapeake Terminals, to supplement its business and increase efficiency at its terminals.

- a. CX_01359
- b. CX_00102
- c. CX_01282
- d. CX_01285-1290
- e. CX_01306
- f. CX_01328-1341
- g. CX_01520-1524

RESPONSE: Denied as stated. The evidence cited does not support the proposed fact. Respondent cites to a December 2021 presentation to the AMPORTS Board (CX_01282, AMPORTS 143(b)(6) Dep. Ex. 3) and the performance goals of AMPORTS senior management (CX_01285-90, AMPORTS 143(b)(6) Dep. Ex. 4) – neither document reference increasing efficiency at the terminals. Instead, both documents focus on increasing AMPORTS profits and generating additional revenue through stevedoring performed by

other parties at its terminals. The testimony cited, given by AMPORTS' 143(b)(6) corporate representative, simply identifies AMPORTS' controlled terminals that were included as part of a discussion during the December 2021 Board presentation. CX_00102, AMPORTS 143(b)(6) Dep. Tr. 65:4-22. AMPORTS 143(b)(6) corporate representative did testify on the purpose of the stevedoring initiative, stating that regardless of what form the initiative ultimately took "I would say [the common goal] would have been the generation of additional profit." CX_00117, AMPORTS 143(b)(6) Dep. Tr. 80:2-7.

AMPORTS also cites to the emailed RFQ sent in March 2022 requesting stevedores (other than Ports America) bid to be the preferred stevedore in at AMPORTS terminal in Baltimore; the email makes no mention of supplementing business or increasing efficiency, focusing solely on the amount per unit fee each stevedore is willing to pay to AMPORTS for the exclusive stevedore agreement. CX_01306, AMPORTS 143(b)(6) Dep. Ex. 7.

AMPORTS further cites to the bilateral exclusive stevedoring contract it entered with Ceres in October 2022 (CX_01328, AMPORTS 143(b)(6) Dep. Ex. 17), the November 1, 2022 Preferred Stevedoring announcement (CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22), and the March 31, 2023 letter from AMPORTS counsel responding when Ports America objected to the lawfulness of the \$25 per car access fee (CX_01520, Beall Dep. Ex. 14). The contract, announcement, and response letter were all created well after the preferred stevedore had already been selected. The contemporaneous evidence, addressed above, establishes that the purpose of the preferred stevedoring program was generation of an additional revenue stream. CX_01282, AMPORTS 143(b)(6) Dep. Ex. 3; CX-01285-90, AMPORTS 143(b)(6) Dep. Ex. 4; CX_01306, AMPORTS 143(b)(6) Dep. Ex. 7; CX_00117, AMPORTS 143(b)(6) Dep. Tr. 80:2-7. Any reference to increasing efficiency is not support by the evidence as a

purpose or consideration for pursuing a preferred stevedore program; it is simply an after the fact justification.

14. A number of stevedore companies were considered as potential partners, including Ceres, Pasha, Redhook, APS Stevedoring, SSA, and Ports America.

a. CX_01282-1284

b. CX_01285-1289

c. CX_00074

RESPONSE: Denied. The evidence cited does not support the assertion that Ports America was considered as a potential partner. CX_01282-84, AMPORTS 143(b)(6) Dep. Ex. 3, is a December 2021 presentation to the AMPORTS Board regarding the stevedoring project which does not mention Ports America anywhere, but does reference Redhook, Ceres and SSA. CX_01285-89, AMPORTS 143(b)(6) Dep. Ex. 4, is a document containing the 2022 Performance Goals for AMPORTS senior management, including Ben Buben, Steve Taylor, and Jake Brown. While Ports America is listed once in Steve Taylor's performance goals, "We will also inquire with stevedoring companies that currently operate on our facilities if a joint venture is in order, i.e. Red Hook, Ceres, Ports America etc.", CX_01286, AMPORTS 143(b)(6) Dep. Ex. 4, the evidence does not support that any inquiry was ever made. Jake Brown, AMPORTS 143(b)(6) corporate representative, testified on behalf of AMPORTS that Ben Buben inquired with Ports America about its interest in a joint venture with AMPORTS (CX_00119-20, AMPORTS 143(b)(6) Dep. Tr. 82:19-83:15), however Ben Buben testified he never spoke to Ports America. CX_00370-71, Buben Dep. Tr. 43:19-44:13.

15. Corporate acquisitions and the concept of providing the stevedoring operations in-house were also considered.

- a. CX_01282-1284
- b. CX_01285-1290
- c. CX_00072-73

RESPONSE: Admitted.

16. APS had discussions with various stakeholders in the Port of Baltimore, and also considered its own experience in working with various stevedoring entities, including the International Longshoreman's Association (ILA), and as a result of those considerations, APS decided to not include Ports America in the Request for Quote ("RFQ") list of invited bidders because Ports America's reputation for safety and efficiency in the Port of Baltimore, as well as its reputation as a commercial partner, was deemed to be inadequate for inclusion in the RFQ.

- a. CX_00149-152
- b. CX_00076, CX_00149-00153,
- c. CX_00370-00373,
- d. CX_00375,
- e. CX_00394-00400,
- f. CX_00597
- g. CX_00599-603
- h. CX_00641-00643,
- i. CX_00830-831
- j. CX_00833
- k. CPFF No. 35
- l. CPFF No. 43
- m. CPFF No. 44

n. CPFF No. 45

RESPONSE: Denied. The evidence cited does not support this RPFF; rather, it establishes that conflicting statements were made by various AMPORTS witnesses attempting to justify AMPORTS excluding Ports America. The only “evidence” cited – two videos of incidents at the Baltimore terminal, one from May 31, 2022 and one from April 18, 2023 – occurred several months after the January 2022 RFQ was sent and bids were received. *See* CPFF 35, 36, and 37, all CPFFs admitted by AMPORTS.

AMPORTS corporate representative testified that he was not aware of safety concerns with Ports America but that he believed Ben Buben spoke with ILA management who voiced concerns. CX_00149-152, AMPORTS 143(b)(6) Dep. Tr. 112:14-115:6. Ben Buben testified he spoke with local ILA generally about health and safety, but that there was no specific discussion of Ports America. CX_00375, Buben Dep. Tr. 48:2-19.

Similarly, Ben Buben testified he spoke with local management (specifically George Molyneaux) about health and safety at the terminal, but Mr. Molyneaux testified he was unaware of the exclusive stevedoring arrangement until after Ceres was selected. CX_00841-43, Molyneaux Dep. Tr. 88:20-90:18.

Steve Taylor, AMPORTS CEO, testified that he thought that the only reason Ports America was excluded from bidding was speeding incidents and trash being left around the terminal (CX_00597; CX_00599-602; CX_00641-42, Taylor Dep. Tr. 62:8-22; 64:14-67:15; 106:2-107:13), information he claims he received from Ben Buben and local management (i.e. Mr. Molyneaux). However, Mr. Molyneaux testified the speeding incident he was aware of involved Ceres, not Ports America. CX_00832, Molyneaux Dep. Tr. 79:19-25. Mr.

Molyneaux testified he could not speak to the safety record of either Ceres or Ports America. CX_00833, Molyneaux Dep. Tr. 81:17-25.

CPFF 35, 43, 44, and 45 establish that Ports America was excluded from the “competitive bidding process”, but do not support any rationale AMPORTS had for the exclusion. This RPFF lacks any support and is denied.

17. Ceres and Ports America both use ILA union drivers for their stevedoring program, however both companies have “their own drivers,” meaning that they keep a roster of ILA union drivers who are their first call when labor is needed.

a. CX_00827

RESPONSE: Denied. The cited testimony does not define or support Respondent’s interpretation of what is meant by “their own drivers.” CX_00827, Molyneaux Dep. Tr. 74:2-15.

18. As a result of having its own drivers, stevedoring company management trains its roster drivers and have them go through a basic test.

CX_00941-945

RESPONSE: Denied as stated. RPFF is vague and does not define “stevedoring company management” or “roster drivers.” Admitted that both MTCE and PAC require drivers that are added to the priority roster, which gives priority when jobs are posted, to go through and pass a basic skills test. CX_00942-43, Beall Dep. Tr. 48:7-49:11.

19. Ports America frequently needs to hire drivers from the ILA hall as a result of being unable to supply sufficient roster drivers.

a. CX_00945.

RESPONSE: Denied. RPFF 19 mischaracterizes the testimony. The testimony does not support the assertion that MTCE “frequently” hires drivers from the ILA hall or what the reason is for needing to hire from the ILA hall. As stated by the witness, the frequency with which MTCE supplements its roster “varies drastically dependent upon requirements for staffing vessel operations.” CX_00945-46, Beall Dep. Tr. 51:19-52:4.

REQUEST FOR QUOTE AND ANNOUNCEMENT OF STEVEDORING PROGRAM

20. In March of 2022, APS sent out a RFQ to a number of stevedoring companies in the Baltimore region, including Red Hook Terminals, Ceres, SSA Marine, and APS Stevedoring to bid for on the stevedoring work at the Atlantic and Chesapeake facilities in Baltimore MD.

a. CPFF No. 40

RESPONSE: Admitted.

21. The RFQ provided vehicle volumes for vehicles for 2021 and expected vehicle volumes for 2022, and invited those companies to provide a per unit dollar figure that it would pay to APS in consideration for the exclusive license to stevedore on its terminal, and requested that completed bids be returned by March 25th 2022.

a. CPFF No. 41

b. CX_01306

RESPONSE: Admitted.

22. APS continued its negotiations with those invited bidders, narrowing down the decision to two final submissions, and ultimately reaching an agreement for the Baltimore terminals, which it signed with Ceres on October 25, 2022.

a. CX_00166-167.

b. CX_01328-1341

c. CX_01355-1356

RESPONSE: Admitted.

23. In addition to the financial provisions, the agreement between Ceres and APS included additional requirements of Ceres as its preferred stevedoring provider, including insurance, indemnification, and dispute resolution terms.

a. CX_01328-1341

RESPONSE: Denied. The document cited, CX_01328, is the exclusive stevedoring agreement between Ceres and AMPORTS. CX_01328, AMPORTS 143(b)(6) Dep. Ex. 17. RPFF 23 is vague and ambiguous in that it is unclear what the “additional requirements” referenced would be in addition to. The evidence cited does not support the statements in RPFF 23.

24. Once negotiations were complete and the agreement was signed, APS announced the new partnerships to the carriers that frequented the Baltimore, MD and Benecia, CA terminals, and included the two stevedoring companies which were selected as its stevedoring partners.

a. CX_01306

b. CPFF No. 39

RESPONSE: Denied. The cited evidence does not support the basis for which AMPORTS’ customers AMPORTS sent the letter. Admitted to the extent that the only stevedores on the cited communication was the two preferred stevedores.

25. That email and the letter attachment were sent out on November 1, 2022 at 2:34pm ET.

a. CX_01359-1362

RESPONSE: Admitted the email with the Preferred Stevedoring announcement attached was sent on November 1, 2022 at 2:33pm. CX_01360, AMPORTS 143(b)(6) Dep. Ex. 23 at 1.

26. Ports America was made aware of the announcement less than two hours later.

- a. RX_09-11
- b. RX_12-14
- c. RX_20, Request No. 8
- d. RX_31, Request No. 8

RESPONSE: Denied as stated. RPFF 26 is vague and does not define the meaning of “made aware.” Admitted that on or about November 1, 2022 a third party forwarded a copy of Respondent’s 2022 Preferred Stevedoring Announcement to a PAC employee. RX_09-11, Schmidt Dep. Ex. 13; RX_12-14, Schmidt Dep. Ex. 14.

27. The intention and commercial purpose of APS in partnering with stevedoring companies was to help expedite cargo through its terminal “even faster, safer, and with higher quality than ever before.”

- a. CX_01359

RESPONSE: Denied as stated. The evidence cited, Respondent’s November 1, 2022 Preferred Stevedoring Announcement, does not support this proposed fact. Admitted that RPFF 27 accurately transcribes AMPORTS’ November 1, 2022 public facing statement explaining its rationale for adopting the exclusive stevedoring program. CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22. Denied that the “intention and commercial purpose” provided in the RPFF is consistent with the testimony and evidence produced in this case.

When discussing AMPORTS’ strategic initiative related to stevedoring, AMPORTS’ 143(b)(6) corporate designee confirmed that whatever form the initiative ultimately took, the

common goal was “generation of additional profit.” CX_00117, AMPORTS 143(b)(6) Dep. Tr. 80:2-7. Similarly, when looking at the 2022 Performance Goals for the three executives responsible for the stevedoring initiative, the Strategic Priority Area was designated as “Value Creation”, and success (labeled “What Good Looks Like”) was designated as generating or tapping into additional revenue streams. CX_01285-89, AMPORTS 143(b)(6) Dep. Ex. 4. The November 1, 2022 Announcement and the intention and commercial purpose proposed in RPFF 27 are inconsistent with the internal intention and commercial purpose established through testimony and evidence.

28. The idea was to establish a commercial framework to facilitate the planning of ground operations to shorten drive times and expedite vessel operations, and thereby improve safety, efficiency, and profitability.

a. CX_01359

RESPONSE: Denied as stated. The evidence cited, Respondent’s November 1, 2022 Preferred Stevedoring Announcement, does not support this proposed fact. Admitted that RPFF 28 accurately transcribes AMPORTS’ November 1, 2022 public facing justification alleging that the exclusive arrangement will “shorten drive times ... and expedite vessel operations.” CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22. Denied that evidence supports the allegation of “improv[ing] safety, efficiency, and profitability.” Denied that the “idea” provided in the RPFF is consistent with the testimony and evidence produced in this case.

As noted in Complainant’s response to RPFF 27, the evidence indicates the sole purpose of the preferred stevedoring initiative was “generation of additional profit.” CX_00117, AMPORTS 143(b)(6) Dep. Tr. 80:2-7; *see also* response to RPFF 27.

29. In its announcement, APS noted that its stevedoring partners would be the only ones licensed to perform stevedoring work at its facility, but that if its ocean carrier customers would prefer to use a non-preferred stevedore, that non-preferred stevedore would be required to pay \$25.00 per unit fee to enter APS' facility.

a. CX_01359

RESPONSE: Denied. RPFF 29 is denied to the extent it is deliberately mischaracterizing the language contained in the November 1, 2022 Preferred Stevedoring Announcement. CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22. Contrary to Respondent's characterization, the language of the Preferred Stevedoring Announcement specifically states "If a customer would like to continue to use their current partnership with another stevedoring company, they will be able to do so by paying a \$25.00 per unit fee to enter our facility." CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22. The plain meaning of the sentence is that an AMPORTS customer may continue to use their current stevedore if they pay \$25 per unit.

30. This announcement received some inquiries, by phone, as well as by letters.

a. CPFF No. 96

b. CX_00450

c. CX_01371-1373 (Grimaldi)

d. CX_01374-1379 (MOL & "K" Line)

e. CX_01367-1368 (Wallenius Wilhelmsen)

f. CX_01380-1383 (Ports America – December 6, 2022)

g. CX_01104

h. CX_02037 (AMPORTS Response – December 29, 2022)

i. CX_01520 (AMPORTS Response – March 31, 2023)

j. CX_02038 (Ports America – April 13, 2023)

RESPONSE: Admitted that Respondent received multiple objections to the November 1, 2022 Preferred Stevedoring Announcement from a variety of sources.

31. Of note is Ports America’s letter dated December 6, 2022 which demanded a rescission of APS’ actions as well as a cease and desist, or in the alternative, an offer to make equivalent terms available to Ports America and to agree to meet to negotiate such an agreement and terms

a. CX_01380-1383 (Ports America – December 6, 2022)

RESPONSE: Admitted.

32. APS responded to Ports America’s letter, initially on December 29, 2022, and advising Ports America that it would suspend the collection, but not the assessment, of the \$25 per unit fee.

a. CX_02037 (AMPORTS Response – December 29, 2022)

RESPONSE: Denied as stated. The evidence cited does not support the assertion in RPF

32. Admitted that AMPORTS responded to Ports America’s December 6, 2022 letter on December 29, 2022 through counsel. CX_02037, APS 0118. Admitted that the letter advised that AMPORTS would “suspend the collection,” but denied that the letter stated that it would not suspend the assessment of the \$25 per unit fee. The letter from AMPORTS counsel stated that “AMPORTS has agreed ... to temporarily suspend the collection of the \$25 per unit fee”, making no mention or suggestion that it was intending to collect later what is was then suspending. CX_02037, APS 0118. The evidence does not support Respondent’s after the fact interpretation of the letter that any fees continued to accrue during “suspension.”

33. APS responded substantively on March 31, 2023, explaining to Ports America that as a non-preferred stevedore accessing its facility, Ports America, would be responsible for the \$25 fee.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied as stated. Admitted that in AMPORTS’ March 31, 2023 letter through counsel, AMPORTS claimed it “wish[ed] to correct any misunderstanding concerning the November 1, 2022 announcement” and stated it intended to assess the \$25 access fee to an unlicensed stevedore accessing the terminal. CX_01520, Beall Dep. Ex. 14 at 1. Complainant denies the characterization in the RPFF that the “explanation” in the letter clarifies Ports America, or any unlicensed stevedore, was legally responsible for the \$25 per car access fee.

34. APS noted that terminal productivity is a critical feature that carriers consider when reviewing and selecting terminals, and that the marine terminal industry was one that required innovation to stay afloat. In light of the fact that carriers have the option to take their business to other terminals or ports, fixed shoreside entities must continually improve their productivity and efficiency to remain competitive in the market. APS had concluded that a preferred stevedore at its terminal would offer a business advantage in terms of revenue and efficiency.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied to the extent RPFF 34 seeks to restate, but not quote the language contained in AMPORTS’ March 31, 2023 letter. CX_01521-22, Beall Dep. Ex. 14 at 2-3. Denied that AMPORTS considered efficiency when considering a preferred stevedore program. See Complainant’s response to RPFF 13, 27, 28.

35. However, APS also noted that it wished to continue and support its commercial relationships with Ports America and stated that it would be reviewing and evaluating its relationships with its preferred stevedore providers and the resulting efficiencies on an ongoing basis. APS went on to state that if Ports America was interested in bidding to be AMPORTS’ preferred

stevedore provider in the future, AMPORTS' would welcome seeing PAC and MTCE's safety records and any efficiency metrics available.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied to the extent RPFF 35 seeks to restate, but not quote the language contained in AMPORTS' March 31, 2023 letter. CX_01524, Beall Dep. Ex. 14 at 5.

36. Respondent advised Ports America's counsel that with regard to a claim under 46 U.S.C. § 41102(c), the Commission first determines the relevant market and then assess the effect of the respondent's practices on competition in that market, noting that if the practices do not have a significant effect on competition, the respondent need not justify its practices and the inquiry is at an end.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied to the extent RPFF 36 seeks to restate, but not quote the language contained the March 31, 2023 letter to Ports America from AMPORTS counsel. CX_01523, Beall Dep. Ex. 14 at 4. Complainant objects to the extent that proposed finding contains legal conclusions. RPFF 36 is further denied to the extent it contains inaccurate, unsupported, and unsolicited legal advice.

PORTS AMERICA RESPONSE

37. On April 7, 2022 Ports America notified at least two of its customers by letter that APS intended to continue its intention of seeking the \$25 per unit fee for stevedoring and stated that while Ports America was considering its options, it recognized that "in the interim, Ports America will be required to pay the fee"

a. CX_01572-1573

b. CX_01574-1575

RESPONSE: Denied as stated. Admitted that on April 7, 2023, Ports America sent letters to at least two of its customers regarding AMPORTS' intent to assess the fee if Ports America continued stevedoring activities at AMPORTS' terminal. CX_01572, Schmidt Dep. Ex. 18; CX_01573, Schmidt Dep. Ex. 19; CX_01574-75, Schmidt Dep. Ex. 20. Denied to the extent RPF 37 characterizes Ports America as recognizing any responsibility to pay the access fee.

38. Those customer-directed letters further requested that the client agree, and confirm in writing, to accept the \$25 fee as a pass-through charge from Ports America.

a. CX_01572-1573

b. CX_01574-1575

RESPONSE: Admitted.

39. Ports America concluded those customer letters by stating that failure to accept the pass-through charge meant that Ports America would not be able to provide services on APS' owned property in Baltimore.

a. CX_01572-1573

b. CX_01574-1575

RESPONSE: Admitted.

40. While one customer declined to accept the pass-through charge, another was willing to negotiate with respect to the fee.

a. CX_01572-1573

b. CX_01574-1578

RESPONSE: Denied as stated. Ports America sought to negotiate with multiple customers, and none was willing to pay the excessive and punitive AMPORTS Access Fee.

41. Ultimately, Ports America did not pass through the fee to its customers or pay the fee to APS.

a. CX_01519

RESPONSE: Admitted.

42. Ports America has not paid the per unit access fee and asserted that the fee is not valid because (1) the letter announcing the fee was sent to the carriers and not Ports America; and (2) they didn't feel the fee was fair.

a. CX_01519

b. CX_01000

c. CX_02039

d. RX_20-21, Request No. 9

e. RX_31-32, Request No. 9

RESPONSE: Denied as stated. RPFF 42 misstates and mischaracterizes the testimony and evidence cited in support. Admitted that Ports America rejected the invoices issued by AMPORTS for the access fee. CX_01519, Beall Dep. Ex. 12. Denied that the reasons Ports America rejected the invoices were the November 1, 2022 announcement was not sent to Ports America and Ports America felt the fee was unfair.

The evidence cited by Respondent does not support RPFF 42. As stated in the letter from Ports America counsel to AMPORTS, CX_02039; the email from Ports America to AMPORTS operations, CX_01519, Beall Dep. Ex. 12; and the PAC and MTCE responses to AMPORTS requests for admission, RX_20-21, Complainant's Request for Admission Response No. 9; RX_31-32, Complainant's Request for Admission Response No. 9, Ports America rejected the invoices issued by AMPORTS because they lacked any legal basis for assessing the access fee to Ports America. Further, Mr. Beall's testimony stated that MTCE

rejected the invoices, “among other things”, because it was not a fair assessment. CX_01000, Beall Dep. Tr. 106:6-9.

43. Ports America thereby operated at a competitive advantage compared to the preferred stevedore Ceres, who has paid the fee effective July 1, 2024.

a. RX_67-68; Declaration of Jacob S. Brown, July 18, 2024

RESPONSE: Denied. The cited evidence does not provide any support for the assertion of any “competitive advantage” in Ports America’s favor as a result of imposition of the \$25 Access Fee, or the much later purported payment of a much smaller contract payment by Ceres. Complainants also object to RPFF 43 on multiple grounds. The evidence cited is a July 18, 2024 declaration of AMPORTS CFO Jacob Brown, made long after discovery was completed on May 1, 2024 and Complainant’s opening brief, proposed findings of fact, and appendix were filed on June 7, 2024. *See* RX_67-68, Declaration of Jacob S. Brown. The declaration, made one day prior to the filing of Respondent’s reply brief and proposed findings of fact, cannot reasonably be considered part of the record in this case.

Further, Complainant objects to RPFF 43 as it states a legal conclusion based on a payment by Ceres of an outstanding balance it allegedly owed under the License and Stevedoring Agreement between Ceres and AMPORTS.

44. On April 13, 2022 Ports America wrote to APS by letter and reiterated its position with respect to its request and analysis of APS’ actions and stated that APS should contact Ports America’s counsel if further discussion was desired. No records were sent by Ports America to APS.

a. CX_02038 (Ports America – April 13, 2023)

b. RX_19-20, Request No. 6

c. RX_20, Request No. 7

- d. RX_30-31, Request No. 6
- e. RX_31, Request No. 7

RESPONSE: Admitted.

45. Ports America's safety record was known in the Port of Baltimore as a result of "QCHAT" meetings with the Maryland Port Administration and which involve industry stake holders, including APS, Ports America, Ceres, and the local ILA.

- a. CPFF No. 55
- b. CX_01095-1096.

RESPONSE: Admitted.

46. APS has been clear about its objective with respect to instituting a preferred stevedoring program at its Atlantic and Chesapeake Terminals for the purpose of increasing its efficiency, safety, and profitability.

- a. CX_01520 (AMPORTS Response – March 31, 2023)
- b. CX_01359

RESPONSE: Denied. The evidence cited does not support RPFF 46. AMPORTS' November 1, 2022 announcement, CX_01359, is a public facing statement of its intent to adopt a preferred stevedoring program. See CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22. CX_01520 is the letter sent by AMPORTS counsel to Ports America counsel on March 31, 2023 defending its position after receiving a letter with Ports America's objection. See CX_01520, Beall Dep. Ex. 14. Denied that either the public facing announcement or letter from AMPORTS counsel to Ports America counsel support the assertion in the RPFF that AMPORTS "has been clear about its objective"; the assertion in this RPFF is inconsistent with the objective of the preferred stevedoring program established through the testimony

and evidence produced in this case --to generate revenue. *See* Complainant's responses to RPF 13, 27, and 28.

47. It was common knowledge on the terminal that Ceres was a more efficient stevedore

a. CX_00830-831

RESPONSE: Denied. Respondent makes a statement regarding "common knowledge", but cites to one individual's testimony. Further, the testimony is not supported by facts, simply stating "we don't track the stevedores. It is just known." CX_00830-31, Molyneaux Dep. Tr. 77:25-78:2.

48. Ports America was fully aware it was responsible for payment of the tariff fee, no later than March 31, 2023

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied. While Complainant admits that CX_01520 is a letter sent by AMPORTS counsel to Ports America counsel on March 31, 2023, which states AMPORTS' position that Ports America would be responsible for paying the \$25 per car access fee, CX_01520 does not support the proposition that Ports America was responsible for the access fee or that AMPORTS had a legal basis for assessing the fee to Ports America. *See* CX_01520, Beall Dep. Ex. 14. Ports America sent a response letter through counsel on April 13, 2023 that clearly disputed it had any responsibility for paying the access fee. CX_02038.

49. Ports America confirmed its understanding that it was responsible for the payment of the tariff fee in its response letter, dated April 13, 2023.

a. CX_02038 (Ports America – April 13, 2023)

RESPONSE: Denied. The evidence cited does not support RPF 49. Contrary to the assertion in RPF 49, the April 13, 2023 letter from Ports America counsel expressly states “(1) we reject AMPORTS' assertion of the purported access fee; (2) we reject AMPORTS' assertion that it has a legal basis upon which to assess or collect such a fee from a stevedore in Baltimore, specifically including PAC or MTCE, and (3) we intend to continue providing stevedoring services to ocean carrier customers loading and unloading at AMPORTS facilities at our discretion and expressly without agreeing to AMPORTS' assessment of its proposed \$25/unit fees and without paying any such fees.” CX_02038.

50. \$25 per unit is a reasonable fee to charge for the non-preferred use of a terminal as it permits access to and use of the terminal (in contrast to the Ports America Chesapeake-controlled Seagirt Terminal where no other stevedore is permitted to operate at any price).

a. CX_00927-928

b. CX_01072-1073

RESPONSE: Denied. Complainants object to this RPF as it calls for a legal conclusion. Complainants further deny this RPF as the testimony cited, which relates to Ports America’s operations at other terminals, has nothing to do with the lawfulness of AMPORTS’ \$25 per car access fee and does not support the proposed “fact.” See CX_00927-28, Beall Dep. Tr. 33:9-34:2; CX_01072-73, Schmidt Dep. Tr. 33:21-34:3.

51. \$25 per unit is a reasonable fee to charge for the non-preferred stevedore use of a terminal as it permits access to and use of the terminal when a per-unit cost is difficult to assess in light of the extensive use of the terminal and required upkeep, capital expenditure, lack of state or federal funds, security requirements and checking in every stevedore, logistics planning, and the lack of indemnification, insurance, and dispute resolution terms with non-preferred

stevedores and reflects sound business judgment in accounting for these business risks and added costs attributable to toleration of non-preferred stevedores at the APS terminals.

- a. CX_00869-875
- b. CX_00450-454
- c. CX_00083-85
- d. CX_00285

RESPONSE: Denied. Complainants object to this RPFF as it calls for a legal conclusion and is not supported by any cited evidence.

52. APS was attempting to implement a preferred stevedore model at its terminal and the \$25 per unit fee was intended to assist in achieving that goal.

- a. CX_01359

RESPONSE: Denied. The cited evidence, i.e. AMPORTS November 1, 2022 Preferred Stevedoring announcement, does not support this RPFF. The testimony and evidence in this case does not support the vague and ambiguous statement of what AMPORTS was attempting to achieve. See Complainant's responses to RPFF 27, 28, and 46.

The testimony of Jake Brown, AMPORTS corporate representative, affirms the \$25 per car access fee for using a nonpreferred stevedore bears no relation to the exclusive arrangement between AMPORTS and the preferred stevedore. Per the testimony of Mr. Brown, AMPORTS did not view the fee for using a nonpreferred stevedore as in any way relevant to the arrangement with Ceres (the preferred stevedore), and in fact could not recall the basis for adding the fee. CX_00181-82, AMPORTS 143(b)(6) Dep. Tr. 144:6-145:4.

Further, the testimony of Ben Buben establishes that the \$25 per unit fee was not related to implementation of the preferred stevedoring arrangement. Mr. Buben, the main driver of

the preferred stevedore initiative, testified that the \$25 per car fee was arrived at by “look[ing] at our capital expenditures each year, the cost for repaving, lighting, fencing, fixing, and repairing damage. And came up with a number to cover that.” CX_00450, Buben Dep. Tr. 123:10-17. When asked if the Capex costs were specifically allocated to stevedores versus other requirements for AMPORTS’ own operations, Mr. Buben replied “It’s just not for stevedores. It’s for any customer that uses our terminal.” CX_00451, Buben Dep. Tr. 124:5-11. Mr. Buben went on to clarify that everyone accessing the terminal benefits from having a clean, lit, and secure facility – including AMPORTS. CX_00452-53, Buben Dep. Tr. 125:7-126:5.

53. When contacted by Ports America for clarification, APS conceded that the language may have been originally unclear and required clarification.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Admitted to the extent “the language” refers to the language contained in AMPORTS November 1, 2022 Preferred Stevedoring announcement, CX_01359, AMPORTS 143(b)(6) Dep. Ex. 22.

54. However, that clarification was provided no later than March 31, 2023 in clear and unambiguous language stating as follows: “We think it important to advise upfront that the \$25/unit fee is a charge that will be assessed to any unlicensed stevedore company for access to AMPORTS’ facilities and it is not a charge payable by our carrier customers.”

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied as stated. Admitted to the extent that the language cited accurately transcribes the language contained in AMPORTS’ March 31, 2023 letter to Ports America counsel. *See* CX_01520, Beall Dep. Ex. 14 at 1. Denied to the extent that an alleged

“clarification” regarding AMPORTS’ interpretation of ambiguous language provided in a letter does not constitute a clarification of the ambiguous tariff language.

55. Ports America confirmed their understanding in their letter to at least two customers, both dated April 7, 2023, when it confirmed that APS intended to continue seeking the \$25 per unit fee for stevedoring of vehicles by non-preferred stevedores and that Ports America would, as a result, be required to pay the fee and that if the client did not accept the pass through charge, Ports America would not be able to perform stevedoring operations at the Atlantic or Chesapeake terminals.

- a. CX_02038 (Ports America – April 13, 2023)
- b. CX_01572-1573
- c. CX_01574-1575

RESPONSE: Denied as stated. The evidence cited does not support this RPFF. Admit that Ports America sent letters to at least two of its customers regarding AMPORTS’ intent to assess the fee. CX_01572, Schmidt Dep. Ex. 18; CX_01573, Schmidt Dep. Ex. 19; CX_01574-75, Schmidt Dep. Ex. 20. Denied to the extent that while Ports America became aware of AMPORTS’ assertion that it intended to charge stevedores, not AMPORTS’ ocean carrier customers, Ports America promptly rejected AMPORTS’ position and advised AMPORTS that it still lacked a legal basis to collect the access fee from Ports America, via implied contract or otherwise. CX_02038; CX_01572, Schmidt Dep. Ex. 18; CX_01573, Schmidt Dep. Ex. 19; CX_01574-75, Schmidt Dep. Ex. 20.

56. Once Ports America raised the issue of its failure to receive an RFQ, APS assured Ports America that it would be included in the next Request for Quote round and invited Ports America to submit safety and efficiency records, for review by APS for future evaluations.

a. CX_01520 (AMPORTS Response – March 31, 2023)

RESPONSE: Denied as stated. Admitted to the extent that in response to Ports America’s December 6, 2022 letter objecting to AMPORTS November 1, 2022 preferred stevedoring announcement, AMPORTS stated “Should Ports America or MTCE be interested in bidding to be AMPORTS’ preferred stevedore provider in the future, for which it appears they may be well suited, AMPORTS will ensure that both entities are included in the next Request for Quote round. In connection with such future evaluations, AMPORTS’ would be pleased to receive PAC and MTCE’s safety records and any efficiency metrics available.” CX_01520, Beall Dep. Ex. 14 at 5 (emphasis added). Denied to the extent this RPFF mischaracterizes AMPORTS’ response as an “assurance” that Ports America would be included and fairly evaluated in future bids.

57. Ports America ignored APS’s invitation to participate in an evaluation, and rejected APS’s right to establish a preferred stevedore program or assess a fee on the use of its terminals by stevedores.

a. CX_02038 (Ports America – April 13, 2023)

RESPONSE: Denied. Complainant objects to this RPFF as it calls for a legal conclusion. Complainant further denies this RPFF as it mischaracterizes the letter sent from Ports America to AMPORTS regarding AMPORTS’ unlawful actions.

DAMAGES

58. APS requested that Ports America provide a basis for its claim of damages in APS’ Motion to Dismiss the Complaint [Doc. No 6, pg 11-12], its discovery requests [Interrogatory No. 10; CX_01532, CX_01562], and its Motion to Compel Discovery [Doc. No. 21, pg 20-21]. Nevertheless, Ports America only provided its unsupported anonymous estimates at 9:34 pm

the evening before the 10:00 am deposition of Ports America's final witness, Mark Schmidt, just over 12 hours before the final deposition between the parties.

- a. CX_01039-1040
- b. RX_66; Email from Gerald Morrissey to Peter F. Black dated Sunday April 28, 2024, at 21:34 EDT with 3 attachments (No. 1: PA_0002232.pdf / No. 2: PA_0002233-PA_0002234.pdf / No. 3: PA_0002235-PA_0002235.pdf)
- c. CX_02040-2043 (PA_0002232-2235)

RESPONSE: Denied. The evidence cited is mischaracterized and does not support RPFF 58. The email from Mr. Morrissey to Mr. Black, RX_66, contained an update to the information previously provided to Respondent regarding the "basis for [Ports America's] claims of damages." The updated information provided in the attachments includes simple calculations for PAC/MTCE's lost business: the current number of cars PAC/MTCE handles is subtracted from the number of cars PAC/MTCE handled prior to implementation of the preferred stevedore model and the difference is multiplied by the rate in the applicable contract. See CX_02040-43, PA_0002232-2235.

Complainant further denies RPFF 58 since Respondent has been aware of the "basis for [Ports America's] claims of damages" since the Complaint was filed on June 2, 2023. As stated in paragraphs 46 and 47 of the Complaint:

"46. Ports America has sustained injury as a result of AMPORTS' actions, and faces significant threat of continued and future injury and damages:

- a. the specter and uncertainty of the prohibitively expensive access fee is threatening the commercial viability of Ports America's car stevedoring**

business and customer contracts in Baltimore and has caused and is causing Port America to lose business from ocean carrier customers;

b. the alleged Ports America liability for the access fee, for \$1.277 million in January, February and March 2023 alone, and potential liability thereafter in the event of continued attempts to assess the unlawful fee, represent direct and ongoing injury to Ports America; and

c. collection of the access fee from Ports America would result in direct injury to Ports America and cause substantial and material loss of business and related injury and damages to Ports America.

47. Ports America's injury and damages are ongoing, and continuing to be tabulated and accruing as of the filing of this Complaint.” CX_00015, Complaint ¶¶ 46-47.

Respondent received additional information regarding the “basis for [Ports America’s] claims of damages” in PAC and MTCE’s response to Respondent’s interrogatories, which identified in detail the business lost as a result of Respondent’s actions. CX_01532, Beall Dep. Ex. 2 at 8 (Complainant’s Interrogatory Response No. 10); CX_01562, Schmidt Dep. Ex. 3 at 8 (Complainant’s Interrogatory Response No. 10). Further, as part of discovery Respondents received information and multiple documents which also support Ports America’s basis for its claims for damages. See CX_02044-337, Complainant’s Supplemental Appendix.

59. Regardless, Ports America’s claim for damages is based on those estimates, but the estimates are not authenticated, verified, signed, or authenticated by any person with knowledge.

a. CX_02040-2043 (PA_0002232-2235)

RESPONSE: Denied as both corporate representatives for Ports America signed verified interrogatory responses setting forth the damages framework and detailed information available at that time in November 2023. CX_01532, Beall Dep. Ex. 2 at 8 (Complainant's Interrogatory Response No. 10); CX_01562, Schmidt Dep. Ex. 3 at 8 (Complainant's Interrogatory Response No. 10); as well as the testimony of Mr. Schmidt.

60. Mr. Schmidt, the corporate representative of Ports America Chesapeake and not MTCE, testified that he did not prepare the estimates of lost profits, could only guess as to who did, was unaware of how the estimates or calculations were arrived at, and had no idea what went into the creation of Ports America's lost profit numbers.

a. CX_01165-01168.

RESPONSE: Denied. This RPFF misstates and mischaracterizes Mr. Schmidt's testimony. Mr. Schmidt testified he did not prepare the documents but was able to identify who did (Caleb Mooney), identified the source as from Ports America's "normal P&L statements, [and] volume", and discussed in detail what assumptions went into the calculations. CX_01165-68, Schmidt Dep. Tr. 126:5-129:1. Mr. Schmidt further clarified that lost business would be calculated by looking at the normal run rates over multiple prior years to account for fluctuations in business. CX_01166-67, Schmidt Dep. Tr. 127:20-128:14.

61. When Ports America's carrier customers were unable to access the Baltimore terminals as a result of the Francis Scott Key Bridge collapse, Ports America worked with its customers to attempt to bring the business to Tradepoint Atlantic. They weren't able to accommodate the business: "based on the cargo volumes and type of cargo, we didn't have the ability to work – they didn't have the ability to bring them in to work at those Tradepoint [sic]."

a. CX_01005-1006

RESPONSE: Denied as stated. Admitted to the extent that Mr. Beall testified in his personal capacity as an employee of MTCE that MTCE attempted to accommodate customers impacted by the Francis Scott Key Bridge collapse. CX_01005, Beall Dep. Tr. 111:5-19. Denied to the extent that Mr. Beall did not testify as a corporate representative of MTCE or on behalf of PAC. *Id.*

62. Ports America's carrier customers were able to divert to Norfolk (VA), Wilmington (DE), Camden (NJ), Newark (NJ), and Jersey City (NJ).

a. CX_01006-1007

RESPONSE: Denied as stated. Denied to the extent RPFF 62 implies that all Ports America's customers diverted to Norfolk (VA), Wilmington (DE), Camden (NJ), Newark (NJ), and Jersey City (NJ) as the cited testimony by Mr. Beall states that some customers of MTCE were able to divert cargo to other terminals on the U.S. east coast. CX_01006-07, Beall Dep. Tr. 112:4-113:16. Denied to the extent that Mr. Beall did not testify as a corporate representative of MTCE or on behalf of PAC. CX_01005, Beall Dep. Tr. 111:5-19.

63. Ports America advertises on its website that it services Norfolk (VA), Wilmington (DE), Camden (NJ), Newark (NJ), and Jersey City (NJ), amongst many other locations all along the East Coast, West Coast, and Gulf Coast.

a. <https://www.portsamerica.com/>

RESPONSE: Admitted.

Respectfully Submitted,

By: /s/ Gerald A. Morrissey III

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Dated: August 6, 2024

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: August 6, 2024

/s/ Carrol P. Hand

Carrol P. Hand